Brazoria County District Court

Cause No. 2024-CV-0032

Matthew Gregory, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 9, 2024
Plaintiff's counsel:	Joseph Miller, Paul & Kline Injury Lawyers

PARTIES

Plaintiff Matthew Gregory is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write policies in the State of Texas and doing business in Katy, Texas. Defendant may be served through its registered agent for service of process.

FACTS

On November 23, 2023, Plaintiff was lawfully operating his vehilce on a public roadway in Katy, Texas, when another vehicle traveling in the opposite direction crossed into Plaintiff's lane and collided head-on with Plaintiff's vehicle. The ipmact was at low speed, but it was sufficient to force Plaintiff's knee against the dashboard and interior components of his vehicle. Plaintiff submitted a claim under the personal injury protection and uninsured or underinsured motorist coverages of his policy with Defendant. Defendant has not paid the benefits owed under those coverages in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

Defendant owed Plaintiff a duty to investigate his claim promptly and fairly, to evaluate the claim in good faith, and to pay benefits due under the policy. Defendant breached these duties by delaying its investigation, failing to give Plaintiff a reasonable explanation for its position, and undervaluing the injury despite medical records doucmenting the knee trauma. Such conduct violates the Texas Insurance Code and the Texas Deceptive Trade Practices Act.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff has suffered a knee injury requiring medical treatment, physical therapy, and time away from work, along with pain, suffering, and loss of enjoyment of life. Plaintiff seeks actual damages, statutory penalties, attorney's fees, and court costs. Plaintiff therefore demands judgment against Defendant in the amount of $226,000.00, plus pre-judgment and post-judgment interest as allowed by law.